
2:00 PM **LINE 9**

25-CLJ-08043

LENDMARK FINANCIAL SERVICES, LLC VS JONATHAN PALHUCA

LENDMARK FINANCIAL SERVICES, LLC
JONATHAN PALHUCA

JAMES MACLEOD
PRO PER

DEFENDANT'S MOTION TO QUASH SERVICE OF SUMMONS BASED ON IMPROPER MAILING AFTER SUBSTITUTED SERVICE (CCP 418.10, 415.20)

TENTATIVE RULING:

For the reasons stated below, Defendant Jonathan Palhuca's "Motion to Quash Service of Summons Based on Improper Mailing After Substituted Service," filed March 26, 2026, is **DENIED**. (Code Civ. Proc., §§ 415.20, 418.10.) The motion is procedurally defective and lacks substantive merit.

Plaintiff's August 3, 2026 Request for Judicial Notice is **GRANTED**. (Evid. Code § 452, subd. (d).)

The motion is procedurally defective because defendant did not file a supporting Memorandum of Points & Authorities. (See Cal. Rules of Court, rules 3.1112; 3.1113.) The motion fails on this basis alone.

The motion also lacks substantive merit. Defendant's sole argument is that after plaintiff, pursuant to Code of Civil Procedure, section 415.20, subdivision (b), served defendant by leaving copies of the summons and complaint at defendant's home in Pacifica, plaintiff waited six days before mailing additional copies of the summons and complaint to defendant's home. Defendant argues that this six-day delay was not "prompt," which defendant argues renders the service invalid. This argument is unsupported. Section 415.20, subdivision (b) only requires that after leaving copies of the summons and complaint at the residence, additional copies of the summons and complaint must "thereafter" be mailed to defendant's residence. plaintiff did exactly that. Nothing in the statute, or any other cited authority, suggests that mailing copies of the summons and complaint six days after physical service was improper, or renders the service ineffective.

For the foregoing reasons, the motion to quash is denied.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order *repeating verbatim the tentative ruling*" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.



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